

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331(1) of the Code of Criminal
Procedure Act No.15 of 1979 read with
Article 138 of the Constitution of the
Democratic Socialist Republic of Sri
Lanka.

**Court of Appeal Case No.
CA/HCC/0185/2025
High Court of Embilipitiya
Case No. HCE/103/2021**

Kandambige Sunil Rathnasiri

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.
R. P. Hettiarachchi, J.**

COUNSEL : **Mohan Senaviratne with S. Dissanayake
for the Appellant.
Yuhan Abeywickrama, DSG for the
Respondent.**

ARGUED ON : **26/05/2026**

DECIDED ON : **15/07/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Appellant was indicted by the Attorney General for committing offences under Section 354 and 365B (2) (b) of the Penal Code that is, Kidnapping from lawful guardianship and Grave Sexual Abuse respectively, on Ranasinghe Liyanage Nuwan Sameera between the period of 01.10.2001 and 28.04.2002.

The trial commenced on 07.11.2023. After leading all the necessary witnesses, the prosecution closed the case. The Learned High Court Judge

had called for the defence and the Appellant had given evidence from the witness box and closed his case.

The Learned High Court Judge after considering the evidence presented by both parties before him and his predecessor, convicted the Appellant as charged and sentenced him as follows:

- For the first count, 5 years rigorous imprisonment with a fine of Rs.5000/-. The fine carries a default sentence of 06 months simple imprisonment.
- For the second count, 10 years rigorous imprisonment with a fine of Rs.5000/-. The fine carries a default sentence of 06 months simple imprisonment.

In addition, a compensation of Rs.50,000/- to be paid to PW1, was ordered with a default sentence of 12 months rigorous imprisonment. The Court has ordered both sentences imposed on counts one and two to run concurrently.

The Learned Counsel for the Appellant informed this court that the Appellant has given consent to argue this matter in his absence. During the argument he was connected via the Zoom platform from prison.

Both Counsel had consented to dispose this case by their written submissions.

The Facts of this case albeit briefly are as follows.

PW1, the victim of this case, had been about 11 years old when he faced this grave violation. When he gave evidence, he was 33 years old. The alleged incident had happened at a Chena, which belonged to the Accused. According to PW1, when he went to the Chena, he had met the Appellant near a well. Thereafter, the both of them had gone into the Chena and stopped near a coconut tree. The Chena had been cultivated with coconut

trees and egg-plant. Under the coconut tree, the Appellant made the victim lie on a Cadjan after removing the victim's short. Thereafter, the Appellant came on to the victim's body and had intercrural sex with the victim. After the said act, the Appellant had said that he would divulge about the acts of sexual abuse committed on PW1 by the three others if he tells this to his parents.

A few days after the incident, the younger brother of the victim's father, had visited them and informed the victim's father about a rumour spreading in the village that the victim was sexually abused by several persons including the Appellant. On the following day, after being inquired about this by the victim's mother, the victim was taken to the police and a complaint was lodged. The complaint further revealed that, apart from the Appellant, two others also had sexually abused the victim.

The JMO who had examined the victim had not been called to give evidence during the trial.

After the closure of the prosecution's case, the defence was called, and the Appellant denied the charges while giving evidence from the witness box.

The following Grounds of Appeal were raised on behalf of the Appellant:

1. Did the Learned Judge of the High court err himself, while pronouncing the impugned judgment, regarding the principles of law relating to burden of proof?
2. Did the Learned Judge of the High court err himself when he concluded that the prosecution had proved the date of the alleged incident of sexual abuse beyond reasonable doubt?
3. Did the Learned Judge of the High court err himself when he failed to apply the provisions of section 114(f) of the Evidence Ordinance in respect of the failure of the prosecution to call and mark the Medico

Legal Report issued in respect of the PW1, during the course of the trial?

4. Did the Learned Judge of the High court err himself, while pronouncing the impugned judgment, regarding the principles of law relating to corroboration?
5. Did the Learned Judge of the High court err himself, while pronouncing the impugned judgment, when he decided to act upon the uncorroborated evidence of PW1, whom he had concluded as an untruthful witness in respect of certain portions of evidence given by him during the course of the trial before the High Court?

In a case of this nature, the testimonial trustworthiness and credibility of PW1, mainly the probability of the occurrence of events as recounted by him should be assessed with utmost care and caution by the Trial Judge. PW1 was 33 years old when he narrated the incident which happened to him.

In respect of the 1st ground of appeal, the Learned Counsel contended that the prosecution had failed to pose any question to PW2, the father of the victim regarding whether he had given consent or not to go with the Appellant. He further argued, in the absence of such questioning, the conviction entered in respect of the 1st count is bad in law.

PW2, Dharmakeerthi had given evidence and narrated how PW1 was abused by the Appellant. According to PW2, upon hearing about this alleged incident from his younger brother, he had inquired about it from PW1. PW1 had then disclosed about the incident to PW2, and had given details of the location where the said incident had taken place. PW1 had stated that three others too had committed abuse on him prior to this incident, along with their names.

Further, when questioned during the trial, PW2 stated that PW1 had revealed to him that the Appellant had gotten onto his body and committed the act of

sexual abuse to him. PW1 had specified to PW2 that the Appellant had rubbed his penis between PW1's legs. PW2 clearly stated that upon hearing this, he understood that an act of abuse of his son had been committed by the Appellant.

Afterwards, PW2 stated that a complaint was lodged with the police. Since he is the father of the victim, his evidence itself reveals that the incident had taken place without his knowledge. As such, it is sufficient proof to establish that PW1 was taken out of the lawful guardianship of PW2 without his consent. Therefore, in my view, his evidence is enough to prove the 1st count against the Appellant.

In respect of the second count, the Learned Counsel contended that the date of offence has not been proved beyond reasonable doubt. According to PW1, he had lodged his complaint on 30.04.2022. He further said that the incident pertaining to this case had happened two weeks prior to lodging the complaint at the police.

The Learned Counsel, quoting the evidence given by PW2, argued that there is a glaring discrepancy between the evidence given by PW1 and PW2 regarding the date of the incident. Therefore, he submits that this inter se contradiction raises a doubt regarding whether such an incident happened.

It must be noted that both PW1 and PW2 had given evidence about 22 years after the incident. Accurate evidence cannot be expected from the witness. Considering the evidence given by PW1 and PW2 with regard to the date of the incident, I conclude that the inter se contradiction shown by the Appellant will not affect the core of the case.

In this case, the creditworthiness of the evidence given by the victim did not suffer at any stage of the trial. I too agree that the contradictions highlighted in the evidence of the victim are not strong enough to shake the credibility of the victim or the core issues of the case against the Appellant.

The Learned High Court Judge in his judgment had very correctly analysed the evidence of the victim and given reasons as to why he accepted the same.

In **The Attorney General v. Sandanam Pitchai Mary Theresa** [2011] 2 SLR 292 the court held that:

“Whilst internal contradictions or discrepancies would ordinarily affect the trustworthiness of the witness statement, it is well established that the Court must exercise its judgment on the nature of the inconsistency or contradiction and whether they are true material to the facts in issue.”

In the case of **Joy Devaraj vs The State of Kerala** (2024) INSC 473 it was held:

“The appellant was required to demonstrate that the incongruities in the statements of the several eye witnesses shook the roots of their credibility. The threshold for disbelieving a witness is not mere discrepancy or inconsistency but material discrepancy and inconsistency, which renders the account narrated by the witnesses so highly improbable that the same may safely be discarded altogether from consideration.”

In the case of **Gangadhar Behera v. State of Orissa**: (2002) 8 SCC 381 it was noted:

“Normal discrepancies in evidence are those which are due to normal errors of observation, normal errors of memory due to lapse of time, due to mental disposition such as shock and horror at the time of occurrence and those are always there however honest and truthful a witness may be. Material discrepancies are those which are not normal, and not expected of a normal person. Courts have to label the category to which a discrepancy may be categorized. While normal discrepancies do not corrode the credibility of a party's case, material discrepancies do so.”

In the third ground of appeal, the Learned Counsel contended that the failure to adduce medical evidence has caused great prejudice to the Appellant. Therefore, the Learned Counsel strenuously argued that this is appropriate to consider under Section 114(f) of the Evidence Ordinance.

Section 114(f) of the Evidence Ordinance states:

“that evidence which could be and is not produced would if produced, be unfavourable to the person who withholds it”

The Learned Counsel for the Appellant contended that, although the Medico Legal Report of the victim was named in the production list in the indictment, the report was not tendered and the JMO who examined the victim was not called to give evidence in Court. The Counsel argued that this has caused great prejudice to the Appellant.

In cases of grave sexual abuse, a medical or medico-legal report would not be a strict requirement in order to successfully prove the charge of grave sexual abuse. The most pertinent requirement in relation to the evidence in sexual assault prosecutions is that the victim’s testimony is clear, consistent and credible.

If a medical report is not available, other types of evidence can be used by courts and prosecutors in order to meet the required burden of proof. A medical examination is a standard part of the investigation process to ensure the health of the victim as well as to recover any available forensic samples, however, it is not a legal prerequisite that is absolutely necessary to secure a conviction.

Furthermore, a Medico Legal Report would contain the opinion of experts. In criminal cases, when such a medico legal report is not produced, it would not adversely affect the prosecution’s case. Generally, appellate courts are of the view that trials are decided as per the totality of the available evidence. If the testimony of the victim is believable and is corroborated by

eyewitnesses or strong circumstantial evidence, a missing report would not break down the case of the prosecution.

As courts mainly consider whether the guilt of the accused has been proven beyond a reasonable doubt, merely the lack of medical documentation would not automatically result in an acquittal, if other available evidence is proved to be reliable.

In the case of **Deepak Kumar Sahu v. State of Chhattisgarh** 2025 INSC 929, decided on 05.08.2025 it was noted:

“The credible and reliable evidence of prosecutrix could not be jettisoned for want of corroboration including the corroboration by medical report or evidence.

Merely because the medical evidence was less corroborative and less supportive or absent in details or indictive of no external injuries. It in no way weakened the prosecution case. Sole testimony of the victim was strong evidence to rely on along with available attendant evidence.”

The Learned High Court Judge had considered the evidence given by PW1 with caution and care and had correctly held that his evidence is convincing and cogent and sufficient on its own to prove the case against the Appellant. Therefore, I conclude that failure to call medical evidence had not caused any prejudice to the Appellant.

In the fourth and fifth ground of appeal, the Appellant contends that the Learned High Court Judge has erred himself while pronouncing the impugned judgment, regarding the principles of law relating to corroboration.

Corroboration is not a strict nor absolutely necessary requirement for conviction in sexual abuse cases. In other words, corroboration is not a sine qua non. In most modern legal jurisdictions, courts generally rely on the principle that the solitary testimony of the victim (prosecutrix) would be

legally sufficient to secure a conviction, as long as the victim's account is credible, reliable and inspires the confidence of the court.

In the case of **The State Of Himachal Pradesh vs Manga Singh** (2019) 16 SCC 759 it was held:

“The conviction can be sustained on the sole testimony of the prosecutrix, if it inspires confidence. The conviction can be based solely on the solitary evidence of the prosecutrix and no corroboration be required unless there are compelling reasons which necessitate the courts to insist for corroboration of her statement. Corroboration of the testimony of the prosecutrix is not a requirement of law; but a guidance of prudence under the given facts and circumstances. Minor contradictions or small discrepancies should not be a ground for throwing the evidence of the prosecutrix.

It is well settled by a catena of decisions of the Supreme Court that corroboration is not a sine qua non for conviction in a rape case. If the evidence of the victim does not suffer from any basic infirmity and the ‘probabilities factor’ does not render it unworthy of credence. As a general rule, there is no reason to insist on corroboration except from medical evidence. However, having regard to the circumstances of the case, medical evidence may not be available. In such cases, solitary testimony of the prosecutrix would be sufficient to base the conviction, if it inspires the confidence of the court.”

In this case, nowhere during the trial PW1 had given untruthful evidence. The victim had given detailed and cogent evidence in the trial. No ambiguities have been noted in the victim's evidence. Therefore, I conclude that acting on the evidence given by PW1 has not caused any prejudice to the Appellant.

In criminal law, the presumption of innocence is a fundamental principle that requires the prosecution to prove the guilt of the accused beyond a reasonable doubt.

Considering the evidence led in this case and guided by the judgements mentioned above, I conclude that this is not an appropriate case in which the judgement delivered by the learned High Court Judge on 24/06/2025 against the Appellant can be interfered upon. I therefore, dismiss the appeal.

Having considering the circumstances of this case, I order the sentence to be operative from the date of sentence, namely on 24.06.2025.

The Registrar of this Court is directed to send this judgement to the High Court of Embilipitiya along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF THE COURT OF APPEAL